

2009 SCC OnLine All 83

In the High Court of Allahabad
(BEFORE AMITAVA LALA AND RAJES KUMAR, JJ.)

Heera Lal ... Petitioner;

Versus

State of U.P. & others ... Respondents.

Civil Misc. Writ Petition No. 4897 of 2009

Decided on January 28, 2009

Advocates who appeared in this case :

For the Petitioner : Sri Jagannath Singh.

For the Respondents: Sri Shobhit Dubey & Standing Counsel.

The Judgment of the Court was delivered by

Amitava Lala, J.- Dispute is with regard to demand of electricity charges by the appropriate electrical authority. Under normal circumstances this Court enquires whether demand is out of theft of electricity or provisional assessment and the petitioner requires consideration of the objection or not. If the answer is affirmative, Court normally puts a condition of deposit 50% of the claim amount to show bonafide and sends the matter to the authority to consider objection with further condition that if petitioner becomes successful, either the deposit will be refunded or adjusted. In case final assessment is made and the petitioner does not want to prefer appeal but to pay the entire dues, a scheme is made for payment by instalments as per Regulation 6.14 of the Electricity Supply Code, 2005.

Petitioner herein wanted to establish a different case. He contended before this Court that the demand notice which is said to be issued in January, 2007 by the respondent no. 4 i.e. Executive Engineer, U.P. Power Corporation, was not received by him but when the respective Amin of the State told that citation for recovery has been issued, he has filed an objection before the Tehsildar of the State, since according to him such authority is the appropriate authority as per law for hearing his objection in this regard. By citing three Judges' Bench judgment of Supreme Court reported in JT 1999 (7) SC 256 (*Chandra Kishore Jha v. Mahabir Prasad*), learned counsel appearing for the petitioner submitted that it is well-settled salutary principle that if a statute provides for a thing to be done in a particular manner, then it has to be done in that manner and in no other manner. We have no quarrel with such proposition. But we have to see how such proposition is applicable herein. He further cited a judgment of Supreme Court reported in (1996) 2 SCC 689 (*Seth Banarsi Dass (dead) by LRS. v. District*

Magistrate and Collector, Meerut) to establish that recovery proceedings are equivalent to execution proceedings under the Code of Civil Procedure, therefore, any auction sale without deciding objections, is bad in law and material irregularity which vitiates the sale. We are of the view that an execution is an incident of the original proceeding. Executing court cannot go beyond the decree. It deals with the decree but neither can modify nor can set aside or recall the decree. Such type of relief can only be granted by the decreetal court. Under Section 47 of the Code of Civil Procedure only the questions between the parties to the suit in which the decree was passed, or their representatives, and relating to the execution, discharge or satisfaction of the decree, shall be determined by the Court executing the decree and not by a separate suit. Under Order 21 Rule 10 of the Code of Civil Procedure an application for execution is to be filed to the Court which passed the decree or to the officer appointed in this behalf, or if the decree has been sent under the provisions herein before contained to another Court then to such Court or to the proper office thereof. Therefore, the composite meaning is that normally the decreetal court and the executing court will be the same so that any objection to the execution, discharge and satisfaction of the decree can be ascertained without overriding the decree. Executing court will only confine itself within the decree. In the present case, purported recovery is purported execution but the objection, if any, with regard to order of the authority means purported decree. The same cannot be regarded as execution, discharge or satisfaction of the decree but variation of the decree. Therefore, it is required to be determined by the appropriate court which passed the decree, here the authority under the Electricity Act not by the executing court, here the Tehsildar of the State. There is a gulf difference between variation of decree by the decreetal court and execution, discharge or satisfaction of the decree by the executing court. If the affected party accepts the decree then the appropriate order can be passed by the executing court regarding execution, discharge or satisfaction about the mode for the respective purpose but if the petitioner does not want to accept the decree either he has to prefer an appeal or to proceed to the court which passed the decree for its variation. Both in one hand variation of decree so to say and on the other hand execution of the decree by executing court so to say, cannot run simultaneously. In the instant case, the petitioner never intended to approach the authority of electricity department in spite of best endeavour of the Court for the reasons best known to him. A rigid attitude not to go to the electrical authority, raises suspicion in the mind of the Court. The petitioner has not annexed any citation but narrated the fact of verbal communication of the Amin and raised a dispute before the Tehsildar only on the basis of such verbal

communication.

Learned counsel for the petitioner further wanted to establish his case with the support of a Division Bench judgment of this High Court reported in 1986 All. L.J. 1451 (*Smt. Chandrawati v. U.P. State Electricity Board*). From the judgement it appears that when no notice of demand was admittedly served on either of the petitioners, such petitioners are entitled to the relief in the form of mandamus not to recover any amount mentioned in the notice of demand and recovery certificates, from the petitioners in pursuance thereof. Such referred case is factually different from this case. In the instant case no such admission is available to us. Although it is stated that the petitioner has not received the demand notice but a copy of the demand notice dated 8th January, 2009 is annexed as Annexure 1. No explanation has been given even verbally as to how he got such copy. It appears to us that the petitioner has not come with clean hands to get the equitable relief from this Court. Hence, the writ petition is liable to be dismissed and accordingly dismissed.

However, no order is passed as to costs.

Rajes Kumar, J.

I agree.

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